

25STCV30474 25STCV30474

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-15

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Case Number: 25STCV30474 Hearing Date: July 15, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 15, 2026 TRIAL DATE: Jan. 11, 2028

CASE: Hasan Mahone, et al. v. Decro Long

Beach, L.P.

CASE

NO.: 25STCV30474

DEMURRER TO COMPLAINT AND MOTION

TO STRIKE

MOVING

PARTY: Defendant Decro Long Beach, L.P.

RESPONDING

PARTY(S): Plaintiffs

Hasan Mahone, et al. (6 Plaintiffs)

TENTATIVE RULING:

Decro

Long Beach's Demurrer is OVERRULED.

Decro

Long Beach's Motion to Strike is DENIED.

Moving Party to give notice.

BACKGROUND

This is a habitability action. Plaintiffs allege that Decro Long Beach failed to correct numerous health and safety defects in the dwellings which Plaintiffs leased.

DISCUSSION:

Demurrer
to Complaint

Decro Long Beach demurs to the seventh cause of action for nuisance and the eighth cause of action for intentional infliction of emotional distress for failure to state a cause of action. The Court finds that these causes of action are adequately pled and overrules the demurrer.

Legal
Standard

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

Seventh
Cause of Action: Nuisance

Decro Long Beach demurs to the seventh

cause of action for nuisance.

Civil Code section 3479 defines a nuisance as “[a]nything which is injurious to health, including, [...] or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property[.]”

Decro Long Beach contends that this cause of action relies on the same contention of an absence of due care as the negligence cause of action. Where negligence and nuisance causes of action rely on the same facts of lacking due care, the nuisance claim is duplicative of the negligence claim and may be subject to demurrer. (*El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349.)

But that is not the situation here. The Complaint alleges alternative theories of negligent failure and an intentional scheme to cut costs and increase income by refusing to repair the numerous defects at the property. (Complaint ¶¶ 29-32; 118.) These theories are not identical, and so the seventh cause of action is not duplicative.

Decro Long Beach also attempts to argue in its reply papers that the seventh cause of action is not adequately pled. This argument was not presented in the moving papers for the demurrer. As such, the Court refuses to consider it.

Eighth

Cause of Action: Intentional Infliction of Emotional Distress

Decro Long Beach also demurs to the eighth cause of action for intentional infliction of emotional distress.

To plead a claim for intentional infliction of emotional distress, a plaintiff must allege (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 874-875.) “Outrageous conduct” is conduct “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Id.*) Moreover, the defendant's conduct must be

“directed primarily” at the plaintiffs, “calculated to cause them severe emotional distress,” or “done with knowledge of their presence and of a substantial certainty that they would suffer severe emotional injury.” (Christensen v. Superior Court (1991) 54 Cal.3d 868, 906.)

Decro

Long Beach asserts that the eighth cause of action is inadequately pled because it does not allege facts showing extreme or outrageous conduct directed at Plaintiffs with the intent of causing severe emotional distress.

The Court does not agree. The Complaint plainly alleges numerous severe defects in the property, including vermin infestations, structural defects, and mold. (Complaint ¶¶ 30-43.) The Complaint also alleges that Decro Long Beach was repeatedly notified of these defects and did not respond to the problem despite multiple enforcement citations. (Complaint ¶ 44-59.) As a result, Plaintiffs allege that they have suffered extreme distress and anxiety, as well as physical illness from the conditions on the property. (Complaint ¶ 83.) The eighth cause of action incorporates these allegations and also alleges that Decro Long Beach's conduct was intentional. (Complaint ¶¶ 122-25.)

Construed in the light most favorable to Plaintiffs, as required on a demurrer, these allegations satisfy all the elements of this cause of action. Nothing more is required at the pleading stage.

Meet and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a).)

However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

The

Declaration attached to the demurrer states that counsel for the parties met and conferred on March 13, 2026, but does not specify the form of the meeting. (Declaration of Kristopher Doodha ISO Dem. ¶ 2.) This is not sufficient. Nevertheless, the Court addresses the demurrer on its merits.

Conclusion

Accordingly,

Decro Long Beach's Demurrer to the Complaint is OVERRULED.

Motion to Strike

Decro

Long Beach moves to strike portions of the Complaint pertaining to punitive damages. The Court denies the motion

Legal

Standard

The Court may, on motion of a party or at any time in its discretion, strike out any irrelevant, false, or improper matter inserted in a pleading, or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or a court order. (Code Civ. Proc. § 436.) The grounds for striking must appear on the face of the pleading or from a matter of which the Court is required to take judicial notice. (Code Civ. Proc. § 437.)

Punitive

Damages

Decro

Long Beach argues that Plaintiffs have not properly set forth facts supporting a claim for punitive damages. The Court disagrees.

Punitive damages claims are governed by Civil Code section 3294.

Subdivision (a) of this statute provides:

In an action for the

breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

Subdivision (b) defines liability for an employer for the

malicious, fraudulent, or oppressive conduct of its employees:

An employer shall

not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

Civil Code section 3294(c) defines malice, oppression and fraud:

(1) 'Malice' means

conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) 'Oppression'

means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) 'Fraud' means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Bold emphasis added.)

To withstand a motion to strike punitive damages allegations, the complaint must set forth facts supporting a claim for punitive damages:

The mere allegation

an intentional tort was committed is not sufficient to warrant an award of punitive damages. (Citation omitted.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.

(Grieves v. Superior Court (Fox) (1984) 157 Cal.App.3d 159,
166 (emphasis added).)

Decro

Long Beach argues that the Complaint does not set forth facts establishing malicious, oppressive, or fraudulent conduct supporting an award of punitive damages. The Court rejects this contention. The Complaint plainly alleges numerous severe defects in the property, including vermin infestations, structural defects, and mold. (Complaint ¶¶ 30-43.) The Complaint also alleges that Decro Long Beach was repeatedly notified of these defects and did not respond to the problem despite multiple enforcement citations. (Complaint ¶ 44-59.) Construed in the light most favorable to Plaintiffs, as required on this motion, these are allegations of despicable conduct carried on with willful disregard to the rights and safety of the Plaintiffs. The punitive damages allegations should not be stricken.

Conclusion

Accordingly,
the Motion to Strike is DENIED.

CONCLUSION:

Accordingly, Decro Long Beach's Demurrer is
OVERRULED.

Decro

Long Beach's Motion to Strike is DENIED.

Moving Party to give notice.

IT IS
SO ORDERED.

Dated: July 15, 2026 _____

Nicholas
F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.